



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

[SB 1428](#): board of supervisors; membership

HERNANDEZ A FLOOR AMENDMENT

1. Removes the conditional enactment clause.
2. Makes technical changes.

HERNANDEZ A FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1428
(Reference to APPROPRIATIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 23, chapter 6, article 1, Arizona Revised
4 Statutes, is amended by adding section 23-911, to read:

5 23-911. Workers' compensation; proof of insurance; public
6 database; notice; definition

7 A. IF AN INSURER ISSUES A ZERO ESTIMATED EXPOSURE POLICY, THE ZERO
8 ESTIMATED EXPOSURE POLICY SHALL INCLUDE A STATEMENT SIGNED BY THE
9 APPLICANT THAT ATTESTS TO THE ACCURACY OF THE INFORMATION PROVIDED IN THE
10 APPLICATION AND THAT THE APPLICANT HAS NO EMPLOYEES AND AN ESTIMATED
11 EXPOSURE OF ZERO, AS FOLLOWS:

12 I ATTEST THAT THE INFORMATION PROVIDED ON THIS
13 APPLICATION IS CURRENT, TRUE, CORRECT, ACCURATE AND COMPLETE
14 TO THE BEST OF MY KNOWLEDGE AND BELIEF. I FURTHER ATTEST THAT
15 I DO NOT HAVE ANY EMPLOYEES AND AN ESTIMATED EXPOSURE OF ZERO.
16 IF I EMPLOY AN EMPLOYEE DURING THE POLICY PERIOD, I WILL
17 PROVIDE WRITTEN NOTIFICATION TO MY WORKERS' COMPENSATION
18 INSURER OF THE EMPLOYMENT WITHIN SIXTY DAYS AND WILL INCLUDE
19 THE ESTIMATED PAYROLL AND CLASSIFICATION CODES OF THE NEW
20 EMPLOYEE. I UNDERSTAND THAT AN INTENT TO DEFRAUD OR ANY
21 OMISSION OR MISREPRESENTATION CONTAINED IN THIS APPLICATION IS
22 UNLAWFUL.

23 B. IF AN EMPLOYER THAT PROVIDES BUSINESS CONSTRUCTION AND
24 IMPROVEMENT SERVICES OBTAINS A ZERO ESTIMATED EXPOSURE POLICY, THE
25 EMPLOYER SHALL PROVIDE TO EACH ENTITY [THAT] [WITH WHICH] THE EMPLOYER
26 DIRECTLY CONTRACTS [WITH] A COPY OF THE POLICY AND WRITTEN NOTIFICATION
27 THAT STATES THAT THE EMPLOYER HAS A TOTAL ESTIMATED EXPOSURE OF ZERO. AN

1 ENTITY THAT RECEIVES WRITTEN NOTICE UNDER THIS SUBSECTION SHALL RETAIN THE
2 NOTICE AND THE POLICY FOR AT LEAST THREE YEARS AFTER THE DATE OF RECEIPT.

3 C. FOR ANY ~~[CONSTRUCTION-RELATED]~~ [CONSTRUCTION-RELATED] WORKERS'
4 COMPENSATION POLICY WITH ZERO ESTIMATED EXPOSURE, ANY CERTIFICATE OF
5 INSURANCE REQUESTED SHALL CONTAIN THE FOLLOWING STATEMENT "TO CONFIRM THE
6 STATUS OF THE WORKERS' COMPENSATION POLICY, GO TO EWCCV.COM/CVS/".

7 D. FOR THE PURPOSES OF THIS SECTION, "ZERO ESTIMATED EXPOSURE
8 POLICY" MEANS AN INSURANCE POLICY THAT IS OBTAINED BY AN EMPLOYER TO COVER
9 THE EMPLOYER'S LIABILITY TO PAY COMPENSATION AFTER THE EMPLOYER REPORTS A
10 TOTAL ESTIMATED EXPOSURE OF ZERO.

11 Sec. 2. Applicability

12 Section 23-911, Arizona Revised Statutes, as added by this act,
13 applies to zero estimated exposure policies and any related certificates
14 of insurance that are entered into or prepared on or after July 1, 2027.

15 ~~<<Sec. 3. Conditional enactment~~

16 ~~Section 23-911, subsection C, Arizona Revised Statutes, as added by~~
17 ~~this act, does not become effective unless permission is granted by the~~
18 ~~Association for Cooperative Research and Development allowing insurance~~
19 ~~producers to modify the standardized form used in this state.>>"~~

20

21 Enroll and engross to conform

22 Amend title to conform

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